be impelled to [draw are] fraught with immensely disturbing consequences for the functioning of the Indian state and, hence, for the health of Indian democracy.'[17]

Appeal for Inquiry

Going beyond printed words in the margins of the media, a group of citizens consisting of writers, academicians, lawyers and journalists has publicly appealed for a parliamentary inquiry into the entire episode. A committee chaired by Nirmala Deshpande, and with Mahasweta Devi, Rajni Kothari, Prabhat Patnaik, Ashish Nandy, Prashant Bhushan, Sumanta Banerjee, Mihir Desai and others as members, held a press conference within a week of the Supreme Court judgement. In its press statement the committee noted:

> Afzal has been convicted of conspiracy primarily on the basis of statements of police witnesses and seizures of materials from him shown by the police, which went un-rebutted during trial, because Afzal was practically unrepresented in the trial. Be that as it may, the fact remains that the court has acquitted three of the four persons charged of conspiracy and has held that the manner and circumstances in which the confessions were obtained makes them unreliable. However, it is only on the basis of these unreliable confessions that the then government immediately committed the country to a full-scale war mobilization against Pakistan, with the possibility that it might have escalated to a nuclear war. The mobilization was used by the NDA government for political purposes. POTA was immediately enacted, and anti- Pakistan as well as communal feelings were whipped up in the war hysteria which was drummed up taking advantage of the attack on Parliament.

Soon after, the committee appealed to the members of Parliament in the following words, with supporting documentation:

> Members of the Committee as well as reputed human rights organizations have been raising serious questions on the conduct of the previous NDA government, especially the functioning of the investigating agencies, in the Parliament attack case. In the light of the Supreme Court judgement of August 4, 2005, we wish to draw your attention to these apprehensions.
>
> (1) The NDA government initiated a full-scale mobilization for war against Pakistan, saying that the terrorists were Pakistanis sponsored by the Pakistan government. The war-effort, which was sustained for nearly a year, had very serious consequences. We have mentioned them in our public appeal . . . The only evidence of terrorist conspiracy originating from Pakistan is Mohammad Afzal's confessional statement. The Supreme Court has held that the confession is unreliable. With the confession set aside, we do not know who attacked Parliament and what was the conspiracy.
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> (2) Mohammad Afzal, the only person found guilty of conspiracy by the Apex Court, is a surrendered militant, who was not only supposed to report regularly to the Special Task Force of J&K, but was also under their surveillance. How could such a person mastermind and execute such a complex conspiracy? How could a terrorist organization rely upon such a